

Shabbir v. State of U.P. — recovery citation stayed on deposit; writ dismissed for default

Allahabad High Court · Division Bench · 17 February 2023 · Writ-C No. 24606 of 2010 · **Writ dismissed for want of prosecution after a conditional stay of recovery.**

HEADNOTE

On a plea that recovery had been started without serving a provisional assessment under section 126 of the Electricity Act, 2003 and clause 6.8(b)(i) of the U.P. Electricity Supply Code, 2005, the Allahabad High Court stayed recovery on the citation dated 12 January 2010 subject to deposit of Rs 90,000. The writ was later dismissed for want of prosecution, leaving that plea undecided.

FACTUAL SUMMARY

Shabbir challenged recovery on a citation dated 12 January 2010, alleging that no provisional assessment under section 126 of the Electricity Act, 2003 and clause 6.8(b)(i) of the U.P. Electricity Supply Code, 2005 had been served, and that he had been given no chance to object. After adjournments for the fourth respondent's counsel to take instructions, the Court on 20 May 2010 stayed recovery on deposit of Rs 90,000. On 17 February 2023 none appeared for him when the petition was called in the revised list.

HOLDING-UNITS

INTERPLAY · EA2003::126

provisional assessment and recovery citation

HOLDING

The Court recorded the petitioner's plea that no provisional assessment under section 126 of the Electricity Act, 2003 and paragraph 6.8(b)(i) of the U.P. Electricity Supply Code, 2005 had been served and that recovery had been started without opportunity to object; it stayed recovery pursuant to the citation dated 12 January 2010 subject to deposit of Rs 90,000 within four weeks, the stay to vacate automatically on default. The writ was later dismissed for want of prosecution, without a decision on that plea. ¶ 20.5.2010, 17.2.2023

PRINCIPLE TAGS

opportunity-before-final-assessment On a plea that recovery had been started without serving a provisional assessment under section 126 of the Electricity Act, 2003 and clause 6.8(b)(i) of the U.P. Electricity Supply Code, 2005, the Allahabad High Court stayed recovery on the citation dated 12 January 2010 subject to deposit of Rs 90,000.. ¶ 20.5.2010, 17.2.2023

s126-procedural-strictness-notice-and-hearing On a plea that recovery had been started without serving a provisional assessment under section 126 of the Electricity Act, 2003 and clause 6.8(b)(i) of the U.P. Electricity Supply Code, 2005, the Allahabad High Court stayed recovery on the citation dated 12 January 2010 subject to deposit of Rs 90,000.. ¶ 20.5.2010, 17.2.2023

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A PROVISIONAL ASSESSMENT UNDER SECTION 126 OF THE ELECTRICITY ACT, 2003 AND CLAUSE 6.8(B)(I) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS SERVED, AND WHETHER RECOVERY WITHOUT OPPORTUNITY TO OBJECT WAS LAWFUL

The Court said the matter required consideration and granted a conditional stay; the writ was later dismissed for want of prosecution. ¶ 20.5.2010, 17.2.2023

